

26STCV09776 26STCV09776

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C07%2F22%2F2026

Source SHA-256: 8798bfdeb67a7a7aca0116bc508ec326aa8325cc6e24e43aefc596c7f1c8845c

Case Number: 26STCV09776 Hearing Date: July 22, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 22, 2026

Case Name: Semper. v. County of LA, et al.

Case No.: 26STCV09776

Matter: Demurrer; Motion to Strike

Moving Party: Defendant County of LA

Responding Party: Plaintiff Jehan Semper

Notice: OK

Ruling: The Demurrer is sustained.

The Motion to Strike is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff Jehan Semper, proceeding in propria persona, filed this action on March 26, 2026, against Defendant County of Los Angeles and Los Angeles General Medical Center. Plaintiff's claims arise out of a laparoscopic appendectomy performed on or around December 3, 2024, at Los Angeles General Medical Center, and subsequent post-operative follow-up appointments.

The Complaint alleges ten causes of action: (1) General Negligence, (2) Medical Negligence, (3) Professional Negligence, (4) Negligent Post-Operative Care, (5) Lack of Informed Consent, (6) Lack of Consent/Battery, (7) Intentional Infliction of Emotional Distress (IIED), (8) Negligent Infliction of Emotional Distress (NIED), (9) Failure to Provide Access to Medical Records, and (10) Violation of Civil Rights under 42 U.S.C. § 1983.

Demurrer

Defendant County of LA now demurs to the Complaint for uncertainty and failure to state sufficient facts.

When considering demurrers, courts read the allegations liberally and in context, and "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn v. Mirday (2007) 147 Cal.App.4th 740, 747.) It is error "to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

Under the Government Claims Act, a plaintiff must timely present a written tort claim to the public entity's governing board within six months of accrual before bringing suit. (Gov. Code §§ 911.2, 945.4). Compliance is an element of the cause of action; failure to plead compliance or facts excusing compliance is fatal on demurrer. (State v. Superior Court (Bodde) (2004) 32 Cal.4th 1234, 1245).

Under the "discovery rule," accrual occurs when a plaintiff suspects both injury and wrongdoing. (Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1110).

Plaintiff alleges in the Complaint that her claims did not accrue until September 2025 due to delayed discovery and missing or altered medical records. However, the specific facts alleged in the Complaint directly contradict this conclusion. Plaintiff alleges that "within days" of a January 2025 follow-up appointment, she discovered that patient portal messages and records describing her post-operative symptoms and reports of mistreatment had been deleted. That is, Plaintiff's own allegations show she suspected wrongdoing and injury no later than January 2025. Accordingly, her state law claims accrued in January 2025, triggering a six-month deadline of July 2025 to present a tort claim. Plaintiff did not present her formal claim to the County Board of Supervisors until September 10, 2025—making it untimely on its face.

Plaintiff argues that her letters to Los Angeles General Medical Center dated June 12, 2025, and August 11, 2025, constitute "substantial compliance" with the Claims Act.

A claim satisfies substantial compliance only if it is actually received by the clerk, secretary, auditor, or board of the local public entity within the statutory period. (Life v. County of Los Angeles (1991) 227 Cal.App.3d 894, 899). Plaintiff's June 12, 2025, letter was sent to the hospital generally. There are no allegations in the Complaint that this letter was actually forwarded to or received by the County's Board of Supervisors. Sending a claim generally to a public hospital does not satisfy the statutory delivery requirements.

Thus, the Demurrer is sustained as to Plaintiff's state claims—the first through ninth causes of action. Leave to amend is denied.

Plaintiff's tenth cause of action pursuant to § 1983 is exempt from the Government Claims Act presentation requirements. (*Felder v. Casey* (1988) 487 U.S. 131, 140-153). However, the claim fails to state a cause of action.

Plaintiff fails to allege facts rising above ordinary negligence. Negligent conduct or negligent failure to obtain informed consent does not constitute a deprivation of a constitutional right under the Due Process Clause. (*Davidson v. Cannon* (1986) 474 U.S. 344, 347; *Walton v. Arrendondo* (D. Or. 2016) 2016 WL 247567, at *4).

Further, a claim for denial of access to courts based on missing or altered medical records requires concrete allegations of actual prejudice or demonstrable harm to Plaintiff's ability to litigate a separate, non-frivolous claim. Plaintiff's allegations do not meet this threshold.

Lastly, to hold the County liable under § 1983, Plaintiff must plead that an official custom, policy, or practice was the "moving force" behind an underlying constitutional violation. (*Monell v. Dep't of Soc. Servs.* (1978) 436 U.S. 658, 694). Because Plaintiff has failed to plead an underlying constitutional violation, and relies on conclusory allegations of "systemic failures" without identifying a specific policy, custom, or practice, the Monell claim fails.

The Demurrer to the tenth cause of action is sustained, with 20 days leave to amend.

In sum, the Demurrer is sustained. 20 days leave to amend only as to the tenth cause of action. Leave to amend is denied as to the first through ninth causes of action.

Motion to Strike

Given the ruling on the Demurrer, the Motion to Strike is denied as moot.

Moving party to give notice.